



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, AICP Senior Planner
Subject: PUDC-25-197 | Northwest Downtown – Zoning Map Amendment
Date: September 22, 2025

Background:

The item for consideration is a *Zoning Map Amendment*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 9/22/2025
- Public Services Committee 10/6/2025
- Second reading 10/13/2025
- Public Services Committee 10/20/2025
- Third and final reading 10/27/2025

Planning Commission Recommendation:

The Planning Commission heard this item at their September 15, 2025 meeting and recommended the Governing Body approve this application by a vote of 4-0.

The Planning Commission Staff report is attached and has not been changed.

Public Comment:

No public comment was made on this item at the Planning Commission meeting. After the Planning Commission mailing, Staff received inquiries from owners within the area to receive the zone change. Owners wanted clarification on the differences between the existing zoning and the proposed zoning. No objections were received. The project page on the website has received 29 views and no comments.

Attachments:

1. Ordinance
2. Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE, CHANGING THE ZONING CLASSIFICATION FROM P - PUBLIC AND MUB MIXED-USE BUSINESS EMPHASIS TO CBD CENTRAL BUSINESS DISTRICT FOR LAND LOCATED BETWEEN O'NEIL AVENUE AND CAREY AVENUE, NORTH OF WEST 19TH STREET AND SOUTH OF WEST 22ND STREET."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That City Staff has petitioned City Council for a zoning map amendment for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on September 15, 2025, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zoning map amendment that is the subject of this ordinance, and recommended approval of said zoning map amendment.

Section 3. That the Governing Body of the City of Cheyenne finds that the zoning map amendment that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved, and the zoning classification of the following described real property is hereby changed to CBD Central Business District:

All of Blocks 228, 229, 230, 268, 269, 290, 291, and 292, and all vacated streets and alleys adjacent thereto, Original City of Cheyenne, Wyoming.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



(Phone) 307-637-6282 (Fax) 307-637-6366

STAFF REPORT

RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** the rezoning of land located between O’Neil Avenue and Carey Avenue, north of West 19th Street and south of West 22nd Street to CBD Central Business District as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change proposes changing roughly 8 blocks of the northwest portion of downtown from P zoning and MUB zoning to CBD zoning. There has been some interest in making changes to the development pattern on the block of the Municipal Building, and in researching options, it was discovered the property is nonconforming in multiple ways in the current P zone. The same issues specific to this area of town which create challenges for the redevelopment of the Municipal Building would also create issues for other governmental agencies on land currently zoned P Public. While the impetus behind the change was the municipal building, the County property was looped in.

The new zoning, should it be adopted, would leave an MUB enclave surrounded by CBD zoning to the south of the proposed zone change. This enclave is bordered on two sides by the P zoning proposed to be changed. That block was therefore included as well.

To the northeast, there is a federally-owned building that it is Staff’s understanding will be disposed of in the near future. Non-public entities are not supposed to use P Public zoning and including this block would round out the area becoming CBD to a nine-block square.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Public Quasi-public, Mixed Use Commercial	P Public, MUB Mixed-use Business Emphasis	Government, Multifamily Residential, Entertainment Venue, Parking Facility, Office, assorted commercial and service uses
North	Public Quasi-public, Mixed Use Commercial	MUB, P, CBD Central Business District	Government, Office
South	Central Business District	CBD	Office, assorted service uses, Multifamily Residential (under construction)
East	Public Quasi-public, Central Business District	P, CBD	Government, Office, Assembly
West	Open Space and Parks, Mixed Use Commercial	CBD, MUB, P (MUB has the UU Urban Use overlay west of this zone change area)	Open Space, Single family residential, government, primary school, Office, assorted service uses

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages revitalizing downtown and including a mix of uses (Policy 1.4.C and Principal 3.2), including retail, restaurants, employment, commercial, office, residential, and civic uses. By changing these properties to CBD zoning, a wider variety of uses are allowed and there will be more options for redevelopment.

PlanCheyenne has a future land use designation of “Central Business District”. The definition of this future land use designation includes the language that the area is “the community’s core business and **civic** area” (emphasis added). The description also states that the designation “covers the entire downtown area”. Although many properties in the area proposed to be rezoned are designated Public Quasi-public instead of Central Business District on the future land use map, the map results in a patchwork around this area of downtown when the Central Business District is intended to be all of downtown. Also, the original future land use map used a parcel-based analysis that resulted in any tax-exempt property being designated Public Quasi-public even if properties were not governmental agencies or even if properties were HUD single-family homes surrounded by the Urban Residential designation. As such, the future land use designation of Public Quasi-public should be taken with caution and surrounding future land use designations should be considered. The future land use designation surrounding this area of Public Quasi-public is largely Central Business District.

The proposed zone change **complies** with review criterion 1.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

Surrounding properties to the east and south are zoned CBD, as is one property to the northwest and a few enclaves within the subject area. The CBD zone for the subject property is compatible with the region.

The proposed zone change for the subject property **complies** with review criterion 2.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

Generally speaking, P zone regulations are for more suburban areas of the community – requiring large setbacks and limiting the mixture of uses available. For example, the P zone does not allow residential uses or food service uses.

On the other hand, the CBD zoning specifically includes governmental uses as part of the diverse mix of uses allowed, and has no setbacks.

The block zoned MUB would be subject to stricter use allowances and design requirements than all surrounding properties if it were not included with this zone change. The nearby MUB-zoned parcels to the south and west are all in the Urban Use overlay zone which also relaxes some of the zone's typical design standards.

The proposed zone change **complies** with review criterion 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

The zone change is taking place in a previously-developed area of the community and a robust street network already exists. Public improvements (such as sidewalks and open spaces) also already exist in the area, though some routine maintenance may be needed.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The CBD zone's applicability states that the zone is "intended for a wide range of Retail, Employment, Service, Civic, Residential, and **Public** uses forming the financial, **governmental**, and cultural core of the community." (emphasis added) Adding public, governmental properties to the CBD zoning is appropriate. The CBD zone is applicable to the central urban core of the City, and while the subject property is northwest of the most central parts of the core, CBD zoning exists on multiple blocks both north and west of the subject property.

The CBD zone does not have design or dimensional standards.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

Although there are no design or dimensional standards specific to the CBD zone, certain city-wide requirements will still be in force with the change in zoning, for example, street trees are required in all zones, as is parking lot landscaping (when parking lots above a certain size are provided).

The CBD zone allows for a wide variety of uses in a more urban environment, including residential and mixed uses. The specific potential development behind this zone change is revamping the Municipal Building, but should that project never be executed, the CBD zoning and its variety of allowed uses are appropriate for this location.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

Reviewers commented on the proposal's conformance with review criteria. No other comments were received from reviewers.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

PUBLIC NOTICE AND PUBLIC COMMENTS RECEIVED:

Although projects have public notice and the opportunity for public comments, projects are required to be approved or denied based on the review criteria (listed above). Public comments relevant to the review criteria may assist the review and discussion on the application.

The public was given notice of the project in the following ways [*only those applicable to the application are listed*]:

- **Legal Notice** in the Wyoming Tribune Eagle published on August 30, 2025
- **Mailed Notice** to neighbors within 300', sent on August 28, 2025 (Mailed by Staff)
- **Posted Notice** on the property was posted by Staff on September 8, 2025.
- **Internet Posting** on connect.cheyennecity.org on September 2, 2025.

As of the publication of the Staff Report (September 8, 2025), Staff has received no inquiries or comments from the public on this project. The project page on the website has received 18 views and no comments.

STAFF REVIEW:

Through the review process, the only review comments that were received were in regards to the review criteria (above).

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The CBD zone is appropriate based on the future land use map and surrounding zoning.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

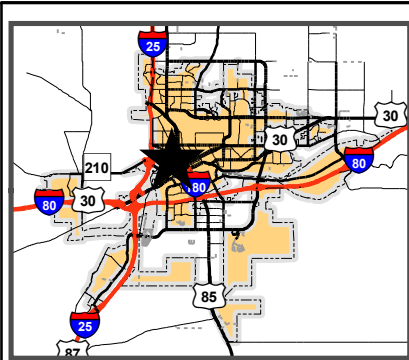
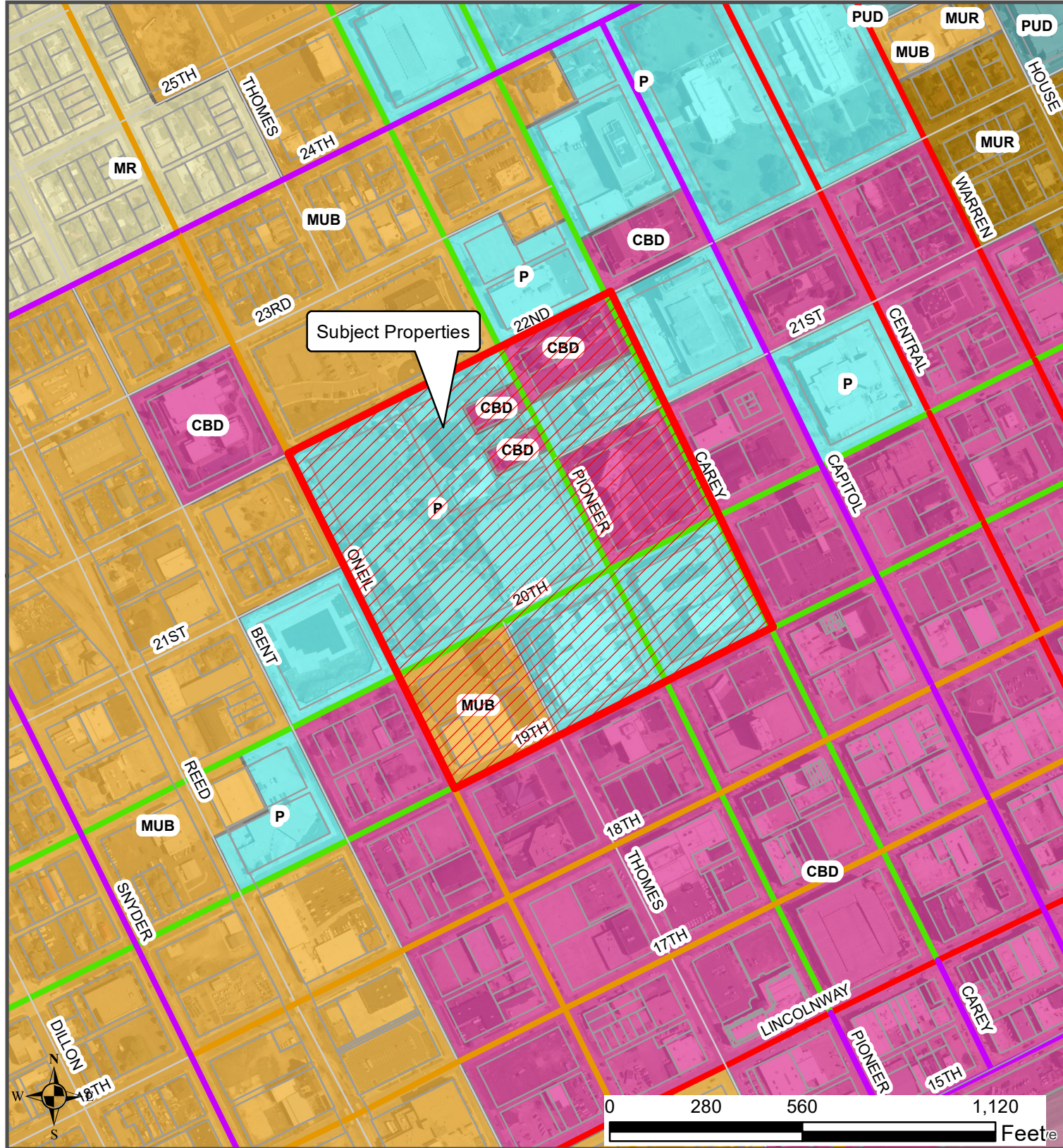
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from P and MUB to CBD.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map

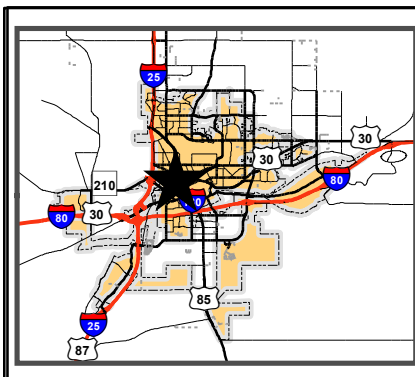
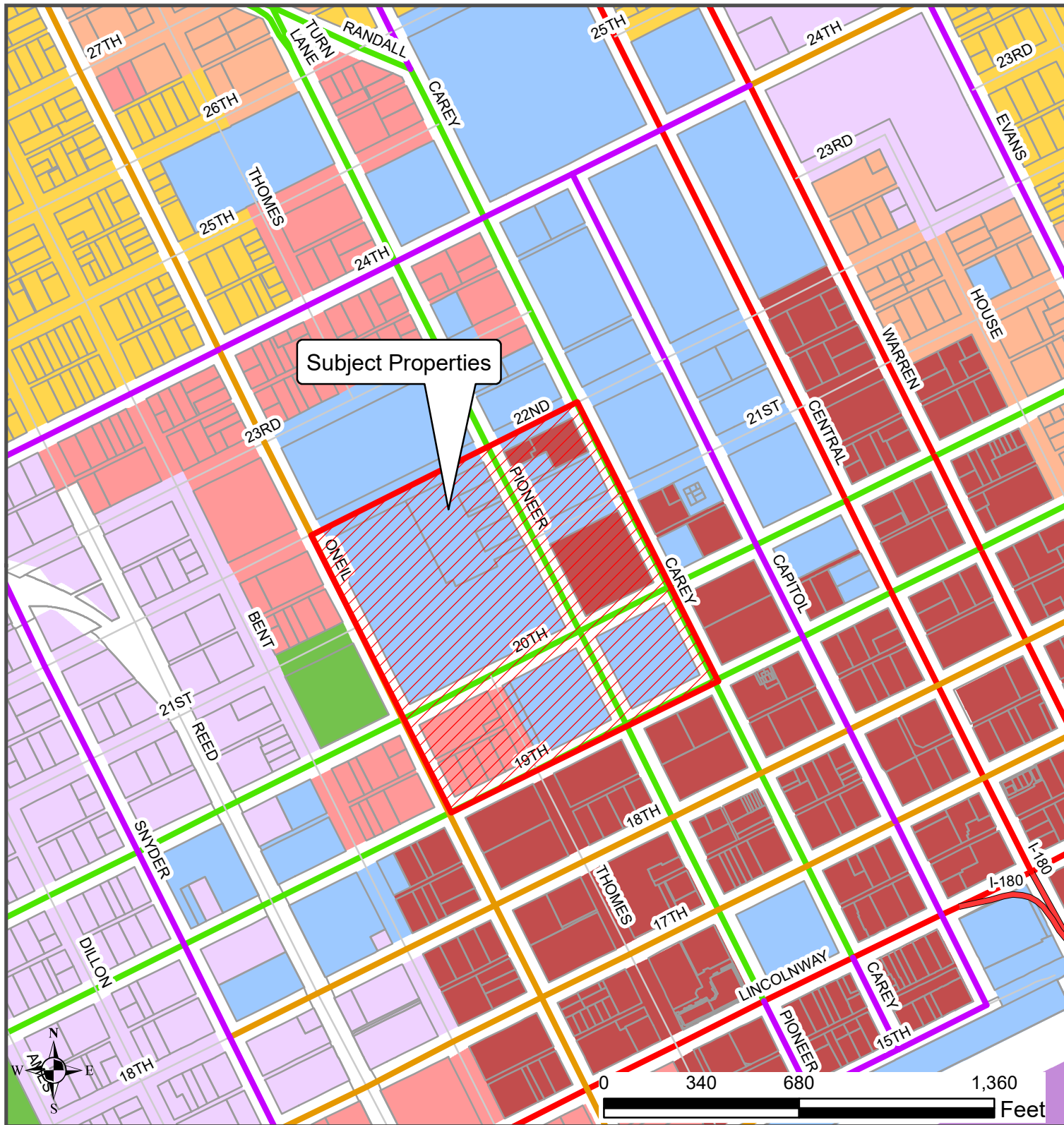


Attachment 1: Zoning Map PUDC-25-197

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

Nov19_CityLimits	A-1 / Agricultural and Rural Residential
Interstate	A-2 / Agricultural
Principal Arterial	AG / City Agricultural
Minor Arterial	MUR / Mixed Use Residential Emphasis
Major Collector	CBD / Central Business District
Minor Collector	CB / Community Business
Local	NB / Neighborhood Business
Private	MU / Mixed Use - County
Platted not built	MUB / Mixed Use Business Emphasis
HR / High Density Residential	MUE / Mixed Use Employment Emphasis
MR / Medium Density Residential	HI / Heavy Industrial
LR / Low Density Residential	LI / Light Industrial
NR-2 / Neighborhood Residential - Med. Density	P / Public
NR-3 / Neighborhood Residential - High Density	AD / Airport District
AR / Agricultural Residential	PUD / Planned Unit Development
	X / Exempt



Attachment 2: Land Use Map PUDC-25-197

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Legend

City Limits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		



PUDC-25-197

Zoning Map Amendment

Status: Active

Submitted On: 8/26/2025

Primary Location

2101 O Neil Avenue
Cheyenne, WY 82001

Owner

No owner information

Applicant

No applicant

Application

This application has a deadline. The deadline is the second Wednesday of the month.
Application Schedule.

Project Name* ?

Municipal Building Area

Proposed Zoning* ?

CBD Central Business District

Project Description or notes ?

Re-zoning from P and MUB various properties northwest of downtown.
Surrounding properties and some internal properties are already zoned CBD.

Review Criteria

The following review criteria are found in the UDC regarding a zoning map amendment.
Please acknowledge the proposed zoning map amendment meets each review criterion
by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.2.1.d.1).*



The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas (2.2.1.d.2).*



The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (2.2.1.d.3).*



The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (2.2.1.d.4).*



The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards (2.2.1.d.5).*



The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval (2.2.1.d.6).*



The review and recommendations of other reviewing bodies (2.2.1.d.7). (Not applicable at time of application)

Whether the application will harm the public health, safety, or general welfare (2.2.1.d.8).*



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*

✓ Seth Lloyd
Aug 26, 2025

Attachments

	Draft Neighbor Notification Letter Neighbor Letter DRAFT.pdf Uploaded by Seth Lloyd on Aug 26, 2025 at 11:03 AM	REQUIRED
	Neighbor Notification List Mailing List.xlsx Uploaded by Seth Lloyd on Aug 26, 2025 at 10:49 AM	REQUIRED
	Proposed Zoning Map Muni Zone Change Map.pdf Uploaded by Seth Lloyd on Aug 26, 2025 at 11:31 AM	REQUIRED



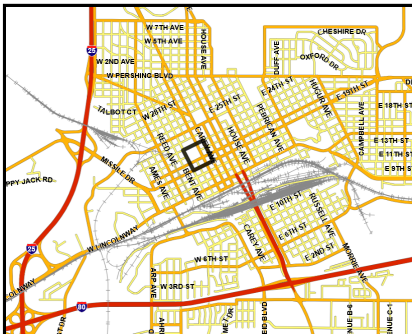
Legal Description:
All of original City of Cheyenne
Blocks 228, 229, 230, 268, 269,
290, 291, and 292 and vacated
streets and alleys adjacent
thereto not currently zoned CBD.

Municipal Building Area Zone Change Map

From P Public and MUB Mixed-use
Business Emphasis to CBD Central
Business District

for

310, 508, 514, and 520 West 19th Street
309, 400, and 510 West 20th Street
308 West 21st Street
1910 Pioneer Avenue
1900, 1904, 1908, 1910, 1914, 1920,
2101, and 2113 Thomas Avenue
2101 O'Neil Avenue



Vicinity Map